

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**RESPONDENT’S UNOPPOSED MOTION FOR AN
EXTENSION OF TIME TO RESPOND TO VERIFIED COMPLAINT**

Pursuant to Rule 71 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.71, Respondent Omni Logistics LLC (“Omni”), by and through its undersigned counsel, respectfully moves for an extension of time to respond to the Verified Complaint of Complainant Thompson Pipe Group, Inc. (“TPG”), from December 26, 2022 to January 23, 2023. Omni makes this request in good faith and not for the purpose of delay. Omni’s undersigned counsel have challenging schedule, which is compounded by year-end obligations and the upcoming holidays. Accordingly, Omni and its counsel require additional time to review and analyze the Verified Complaint and to develop an appropriate response.

As required by 46 C.F.R. § 502.71, Omni has conferred with counsel for TPG, who advised that TPG does not oppose Omni’s requested extension of time.

WHEREFORE, Respondent Omni Logistics LLC respectfully requests that the deadline for filing a response be extended to January 23, 2023.

Dated: December 16, 2022

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaug

MARC S. BLUBAUGH (Ohio Bar No.
0068221)

mblubaug@beneschlaw.com

NICHOLAS P. LACEY (Ohio Bar No.
0100042)

nlacey@beneschlaw.com

41 S. High Street, Suite 2600

Columbus, OH 43215

Telephone: (614) 223-9300

Facsimile: (614) 223-9330

Counsel for Respondent Omni Logistics LLC

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 16th day of December, 2022, a true and correct copy of the foregoing Unopposed Motion for an Extension of Time to Respond to Verified Complaint was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@fisherbroyles.com)

Gene M. Burd (gene.burd@fisherbroyles.com)

Counsel for Complainant Thompson Pipe Group, Inc.

/s/ Marc S. Blubaugh _____
Marc S. Blubaugh